

Vendor: THOMAS EMPIRE PTY LTD A.C.N. 152 384 293

Purchaser:

Contract of Sale

UNIT 1, 39 POWLETT STREET, ALTONA MEADOWS VIC 3028

LEWIS O'BRIEN & ASSOCIATES PTY LTD
Commercial Lawyers

Form 1 – Estate Agents Act 1980

CONTRACT OF SALE OF REAL ESTATE—PARTICULARS OF SALE

Part 1 of the standard form of contract prescribed by the Estate Agents (Contracts)
Regulations 2008

Property Address: UNIT 1, 39 POWLETT STREET, ALTONA MEADOWS VIC 3028

The vendor agrees to sell and the purchaser agrees to buy the property, being the land and the goods, for the price and on the terms set out in this contract.

The terms of this contract are contained in the:

- * Particulars of Sale; and
- * Special Conditions, if any; and
- * General Conditions

in that order of priority.

IMPORTANT NOTICE TO PURCHASERS

Cooling-off period

**Section 31
Sale of Land Act 1962**

You may end this contract within 3 clear business days of the day that you sign the contract if none of the exceptions listed below applies to you.

You must either give the vendor or the vendor's agent **written** notice that you are ending the contract or leave the notice at the address of the vendor or the vendor's agent to end this contract within this time in accordance with this cooling-off provision.

You are entitled to a refund of all the money you paid EXCEPT for \$100 or 0.2% of the purchase price (whichever is more) if you end the contract in this way.

EXCEPTIONS

The 3-day cooling-off period does not apply if—

- you bought the property at or within 3 clear business days **before or after** a publicly advertised auction;
- the property is used primarily for industrial or commercial purposes;
- the property is more than 20 hectares in size and is used primarily for farming;
- you and the vendor have previously signed a contract for the sale of the same land in substantially the same terms; or
- you are an estate agent or a corporate body.

SIGNING OF THIS CONTRACT

WARNING: THIS IS A LEGALLY BINDING AGREEMENT. YOU SHOULD READ THIS CONTRACT BEFORE SIGNING IT.

Purchasers should ensure that prior to signing this contract, they have received:

- a copy of the section 32 statement required to be given by a vendor under section 32 of the Sale of Land Act 1962 in accordance with Division 2 of Part II of that Act; and
- a copy of the full terms of this contract.

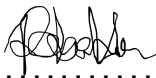
The authority of a person signing:

- under power of attorney; or
- as director of a corporation; or
- as agent authorised in writing by one of the parties

must be noted beneath the signature.

Any person whose signature is secured by an estate agent acknowledges being given by the agent at the time of signing a copy of the terms of this contract.

SIGNED BY THE PURCHASER



26 April 2021

on / /2020

Rebecca Jane Hay

print name of person signing

state nature of authority if applicable (e.g. "director", "attorney under power of attorney")

This offer will lapse unless accepted within [] clear business days (3 days if none specified).

SIGNED BY THE VENDORS



on 2 / 5 /2020

print name of person signing

Milani Simic Lloyd Thomas

state nature of authority if applicable (e.g. "director", "attorney under power of attorney")

The **DAY OF SALE** is the date by which both parties have signed this contract.

Particulars of Sale

Vendor's estate agent

Beyond Property of Suite 103, Level 11, 456 Lonsdale Street, Melbourne 3000

Telephone: (03) 9070 9837 Ref: Waran Naidu M: 0458 7239 953

Vendor

THOMAS EMPIRE PTY LTD A.C.N. 152 384 293 of Unit 1, 34 May Street, Altona North 3025

Vendor's legal practitioner or conveyancer

Lewis O'Brien & Associates Pty Ltd of Suite 113, 1st Floor, 89 High Street, Kew, 3101

Telephone: (03) 9888 6388 email: info@lewisobrien.com.au

Purchaser Rebecca Jane Hay
23/87-93 Stevedore Street
WILLIAMSTOWN 3016

Purchaser's legal practitioner or conveyancer

Rippleside Conveyancing Services

Telephone: 5264 8862 Fax: Email: fiona@ripplesideconveyancing.com.au

Land (General Conditions 3 and 9)

The land is described in Certificate of Title Volume 11688 Folio 133 being lot 1 on Plan of Subdivision 738777S

The land includes all improvements and fixtures.

Property address

The address of the land is: UNIT 1, 39 POWLETT STREET, ALTONA MEADOWS VIC 3028

Goods sold with the land – General Condition 2.3(f)

All fixed floor coverings, electric light fittings and window furnishings.

Payment (General Condition 11)

Price \$ 473,000.00

Deposit \$ 47,300.00 by 10 /05 /:2021 (of which \$1000 has been paid)

Balance \$ 425,700.00 payable at settlement

GST (General Condition 13)

The price includes GST (if any) unless the words '**plus GST**' appear in this box

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If this sale is a sale of land on which a 'farming business' is carried on which the parties consider meets the requirements of section 38-480 of the GST Act or of a 'going concern' then add the words '**farming business**' or '**going concern**' in this box

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If the margin scheme will be used to calculate GST then add the words '**margin scheme**' in this box

XXXXXX

Settlement (General Condition 10)

is due on 06 / 08 /2021

unless the land is a lot on an unregistered plan of subdivision, in which case settlement is due on the later of:

- the above date; or
- 14 days after the vendor gives notice to the purchaser of registration of the plan of subdivision.

Lease (General Condition 1.1)

At settlement the purchaser is entitled to vacant possession of the property unless the words '**subject to lease**' appear in this box

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in which case refer to general condition 1.1. If '**subject to lease**' then particulars of the lease are:

*residential tenancy agreement for a fixed term ending on/...../20.....

OR

*periodic residential tenancy agreement determinable by notice

OR

*lease for a term ending on/...../20..... with [.....] options to renew, each of [.....] years

Terms Contract (General Condition 23)

If this contract is intended to be a terms contract within the meaning of the **Sale of Land Act 1962** then add the words '**terms contract**' in this box

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and refer to general condition 23 and add any further provisions by way of special conditions

Loan (General Condition 14)

The following details apply if this contract is subject to a loan being approved:

Lender: Any Financial Institution

Loan amount \$ 425,700.00

Approval date 14/05/2021

Special conditions

This contract does not include any special conditions unless the words '**special conditions**' appear in this box

Special Conditions

If the Contract is subject to '**special conditions**' then particulars of the Special Conditions are set out in the attached page(s).

Electronic Conveyancing (Special Condition 1)

Settlement and lodgement will be conducted electronically in accordance with Special Condition 1 if the below box is marked "EC"

EC

GST Withholding Notice (Special Condition 2)

Pursuant to section 14-255 Schedule 1 Taxation Administration Act 1953 (Cwlth)

The Purchaser/recipient is not required to make a payment under section 14-250 of Schedule 1 of the Taxation Administration Act 1953 (Cwlth) in relation to the supply of the above property.



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Special Conditions:**Building Inspection**

"This Contract is conditional upon the Purchaser receiving a building inspection report on the Property, at the cost of the Purchaser. The Vendor will allow the inspector access to the Property upon reasonable notice. Should the report reveal a major structural defect then the Purchaser shall give written notice to the Vendor or the Vendor's estate agent of this fact within 7 days of the Date of Sale and include a copy of the Report. Should the Purchaser terminate the Contract pursuant to this Special Condition then any Deposit paid shall be refunded to the Purchaser without delay."
(completed by 14/05/21)

Pest Inspection

"This Contract is conditional upon the Purchaser receiving a pest inspection report on the property, at the cost of the Purchaser. The Vendor will allow the pest inspector access to the Property upon reasonable notice. Should the report reveal a major infestation then the Purchaser shall give written notice to the Vendor or the Vendor's estate agent of this fact within 7 days of the Date of Sale and include a copy of the Report. Should the Purchaser terminate the Contract pursuant to this Special Condition then any Deposit paid shall be refunded to the Purchaser without delay."
(completed by 14/05/21)

All gas and electric appliances are in safe working order before settlement

Dishwasher to be installed prior to settlement

All windows to be lockable and working prior to settlement

Subject to Bank valuation (completed by 14/05/21)

Subject to finance approval (completed by 14/05/21)

CONTRACT OF SALE OF REAL ESTATE—GENERAL CONDITIONS

Part 2 of the standard form of contract prescribed by the Estate Agents (Contracts) Regulations 2008

TITLE

1. Encumbrances

- 1.1 The purchaser buys the property subject to:
 - (a) any encumbrance shown in the section 32 statement other than mortgages or caveats; and
 - (b) any reservations in the crown grant; and
 - (c) any lease referred to in the particulars of sale.
- 1.2 The purchaser indemnifies the vendor against all obligations under any lease that are to be performed by the landlord after settlement.
- 1.3 In this general condition 'section 32 statement' means a statement required to be given by a vendor under section 32 of the **Sale of Land Act 1962** in accordance with Division 2 of Part II of that Act.

2. Vendor warranties

- 2.1 The vendor warrants that these general conditions 1 to 28 are identical to the general conditions 1 to 28 in the standard form of contract of sale of real estate prescribed by the Estate Agents (Contracts) Regulations 2008 for the purposes of section 53A of the **Estate Agents Act 1980**.
- 2.2 The warranties in general conditions 2.3 and 2.4 replace the purchaser's right to make requisitions and inquiries.
- 2.3 The vendor warrants that the vendor:
 - (a) has, or by the due date for settlement will have, the right to sell the land; and
 - (b) is under no legal disability; and
 - (c) is in possession of the land, either personally or through a tenant; and
 - (d) has not previously sold or granted any option to purchase, agreed to a lease or granted a pre-emptive right which is current over the land and which gives another party rights which have priority over the interest of the purchaser; and
 - (e) will at settlement be the holder of an unencumbered estate in fee simple in the land; and
 - (f) will at settlement be the unencumbered owner of any improvements, fixtures, fittings and goods sold with the land.
- 2.4 The vendor further warrants that the vendor has no knowledge of any of the following:
 - (a) public rights of way over the land;
 - (b) easements over the land;
 - (c) lease or other possessory agreement affecting the land;
 - (d) notice or order affecting the land which will not be dealt with at settlement, other than the usual rate notices and any land tax notices;
 - (e) legal proceedings which would render the sale of the land void or voidable or capable of being set aside.
- 2.5 The warranties in general conditions 2.3 and 2.4 are subject to any contrary provisions in this contract and disclosures in the section 32 statement required to be given by the vendor under section 32 of the **Sale of Land Act 1962** in accordance with Division 2 of Part II of that Act.
- 2.6 If sections 137B and 137C of the **Building Act 1993** apply to this contract, the vendor warrants that:
 - (a) all domestic building work carried out in relation to the construction by or on behalf of the vendor of the home was carried out in a proper and workmanlike manner; and
 - (b) all materials used in that domestic building work were good and suitable for the purpose for which they were used and that, unless otherwise stated in the contract, those materials were new; and
 - (c) domestic building work was carried out in accordance with all laws and legal requirements, including, without limiting the generality of this warranty, the **Building Act 1993** and regulations made under the **Building Act 1993**.

- 2.7 Words and phrases used in general condition 2.6 which are defined in the **Building Act 1993** have the same meaning in general condition 2.6.
- 3. Identity of the land**
- 3.1 An omission or mistake in the description of the property or any deficiency in the area, description or measurements of the land does not invalidate the sale.
- 3.2 The purchaser may not:
- (a) make any objection or claim for compensation for any alleged misdescription of the property or any deficiency in its area or measurements; or
 - (b) require the vendor to amend title or pay any cost of amending title.
- 4. Services**
- 4.1 The vendor does not represent that the services are adequate for the purchaser's proposed use of the property and the vendor advises the purchaser to make appropriate inquiries. The condition of the services may change between the day of sale and settlement and the vendor does not promise that the services will be in the same condition at settlement as they were on the day of sale.
- 4.2 The purchaser is responsible for the connection of all services to the property after settlement and the payment of any associated cost.
- 5. Consents**
- The vendor must obtain any necessary consent or licence required for the sale. The contract will be at an end and all money paid must be refunded if any necessary consent or licence is not obtained by settlement.
- 6. Transfer**
- The transfer of land document must be prepared by the purchaser and delivered to the vendor at least 10 days before settlement. The delivery of the transfer of land document is not acceptance of title. The vendor must prepare any document required for assessment of duty on this transaction relating to matters that are or should be within the knowledge of the vendor and, if requested by the purchaser, must provide a copy of that document at least 3 days before settlement.
- 7. Release of security interest**
- 7.1 This general condition applies if any part of the property is subject to a security interest to which the **Personal Property Securities Act 2009** (Cth) applies.
- 7.2 For the purposes of enabling the purchaser to search the Personal Property Securities Register for any security interests affecting any personal property for which the purchaser may be entitled to a release, statement, approval or correction in accordance with general condition 7.4, the purchaser may request the vendor to provide the vendor's date of birth to the purchaser. The vendor must comply with a request made by the purchaser under this condition if the purchaser makes the request at least 21 days before the due date for settlement.
- 7.3 If the purchaser is given the details of the vendor's date of birth under condition 7.2, the purchaser must:
- (a) only use the vendor's date of birth for the purposes specified in condition 7.2; and
 - (b) keep the date of birth of the vendor secure and confidential.
- 7.4 The vendor must ensure that at or before settlement, the purchaser receives:
- (a) a release from the secured party releasing the property from the security interest; or
 - (b) a statement in writing in accordance with section 275(1)(b) of the **Personal Property Securities Act 2009** (Cth) setting out that the amount or obligation that is secured is nil at settlement; or
 - (c) a written approval or correction in accordance with section 275(1)(c) of the **Personal Property Securities Act 2009** (Cth) indicating that, on settlement, the personal property included in the contract is not or will not be property in which the security interest is granted.

- 7.5 Subject to general condition 7.6, the vendor is not obliged to ensure that the purchaser receives a release, statement, approval or correction in respect of personal property:
- (a) that:
 - (i) the purchaser intends to use predominantly for personal, domestic or household purposes; and
 - (ii) has a market value of not more than \$5000 or, if a greater amount has been prescribed for the purposes of section 47(1) of the **Personal Property Securities Act 2009** (Cth) , not more than that prescribed amount; or
 - (b) that is sold in the ordinary course of the vendor's business of selling personal property of that kind.
- 7.6 The vendor is obliged to ensure that the purchaser receives a release, statement, approval or correction in respect of personal property described in general condition 7.5 if—
- (a) the personal property is of a kind that may or must be described by serial number in the Personal Property Securities Register; or
 - (b) the purchaser has actual or constructive knowledge that the sale constitutes a breach of the security agreement that provides for the security interest.
- 7.7 A release for the purposes of general condition 7.4(a) must be in writing.
- 7.8 A release for the purposes of general condition 7.4(a) must be effective in releasing the goods from the security interest and be in a form which allows the purchaser to take title to the goods free of that security interest.
- 7.9 If the purchaser receives a release under general condition 7.4(a) the purchaser must provide the vendor with a copy of the release at or as soon as practicable after settlement.
- 7.10 In addition to ensuring that a release is received under general condition 7.4(a), the vendor must ensure that at or before settlement the purchaser receives a written undertaking from a secured party to register a financing change statement to reflect that release if the property being released includes goods of a kind that are described by serial number in the Personal Property Securities Register.
- 7.11 The purchaser must advise the vendor of any security interest that is registered on or before the day of sale on the Personal Properties Securities Register, which the purchaser reasonably requires to be released, at least 21 days before the due date for settlement.
- 7.12 The vendor may delay settlement until 21 days after the purchaser advises the vendor of the security interests that the purchaser reasonably requires to be released if the purchaser does not provide an advice under general condition 7.11.
- 7.13 If settlement is delayed under general condition 7.12 the purchaser must pay the vendor:
- (a) interest from the due date for settlement until the date on which settlement occurs or 21 days after the vendor receives the advice, whichever is the earlier; and
 - (b) any reasonable costs incurred by the vendor as a result of the delay as though the purchaser was in default.
- 7.14 The vendor is not required to ensure that the purchaser receives a release in respect of the land. This general condition 7.14 applies despite general condition 7.1.
- 7.15 Words and phrases which are defined in the **Personal Property Securities Act 2009** (Cth) have the same meaning in general condition 7 unless the context requires otherwise.

8. **Builder warranty insurance**

The vendor warrants that the vendor will provide at settlement details of any current builder warranty insurance in the vendor's possession relating to the property if requested in writing to do so at least 21 days before settlement.

9. **General law land**

- 9.1 This general condition only applies if any part of the land is not under the operation of the **Transfer of Land Act 1958**.
- 9.2 The vendor is taken to be the holder of an unencumbered estate in fee simple in the land if there is an unbroken chain of title starting at least 30 years before the day of sale proving on the face of the documents the ownership of the entire legal and equitable estate without the aid of other evidence.

- 9.3 The purchaser is entitled to inspect the vendor's chain of title on request at such place in Victoria as the vendor nominates.
- 9.4 The purchaser is taken to have accepted the vendor's title if:
 - (a) 21 days have elapsed since the day of sale; and
 - (b) the purchaser has not reasonably objected to the title or reasonably required the vendor to remedy a defect in the title.
- 9.5 The contract will be at an end if:
 - (a) the vendor gives the purchaser a notice that the vendor is unable or unwilling to satisfy the purchaser's objection or requirement and that the contract will end if the objection or requirement is not withdrawn within 14 days of the giving of the notice; and
 - (b) the objection or requirement is not withdrawn in that time.
- 9.6 If the contract ends in accordance with general condition 9.5, the deposit must be returned to the purchaser and neither party has a claim against the other in damages.
- 9.7 General condition 10.1 should be read, in respect of that part of the land which is not under the operation of the **Transfer of Land Act 1958**, as if the reference to 'registered proprietor' is a reference to 'owner'.

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10. Settlement

- 10.1 At settlement:
 - (a) the purchaser must pay the balance; and
 - (b) the vendor must:
 - (i) do all things necessary to enable the purchaser to become the registered proprietor of the land; and
 - (ii) give either vacant possession or receipt of rents and profits in accordance with the particulars of sale.
- 10.2 The vendor's obligations under this general condition continue after settlement.
- 10.3 Settlement must be conducted between the hours of 10.00 a.m. and 4.00 p.m. unless the parties agree otherwise.

11. Payment

- 11.1 The purchaser must pay the deposit:
 - (a) to the vendor's licensed estate agent; or
 - (b) if there is no estate agent, to the vendor's legal practitioner or conveyancer; or
 - (c) if the vendor directs, into a special purpose account in an authorised deposit-taking institution in Victoria specified by the vendor in the joint names of the purchaser and the vendor.
- 11.2 If the land sold is a lot on an unregistered plan of subdivision, the deposit:
 - (a) must not exceed 10% of the price; and
 - (b) must be paid to the vendor's estate agent, legal practitioner or conveyancer and held by the estate agent, legal practitioner or conveyancer on trust for the purchaser until the registration of the plan of subdivision.
- 11.3 The purchaser must pay all money other than the deposit:
 - (a) to the vendor, or the vendor's legal practitioner or conveyancer; or
 - (b) in accordance with a written direction of the vendor or the vendor's legal practitioner or conveyancer.
- 11.4 At settlement, payments may be made or tendered:
 - (a) in cash; or
 - (b) by cheque drawn on an authorised deposit-taking institution; or
 - (c) if the parties agree, by electronically transferring the payment in the form of cleared funds.
- 11.5 For the purpose of this general condition 'authorised deposit-taking institution' means a body corporate in relation to which an authority under section 9(3) of the **Banking Act 1959 (Cth)** is in force.
- 11.6 At settlement, the purchaser must pay the fees on up to three cheques drawn on an authorised deposit-taking institution. If the vendor requests that any additional cheques be drawn on an authorised deposit-taking institution, the vendor must reimburse the purchaser for the fees incurred.

12. Stakeholding

- 12.1 The deposit must be released to the vendor if:
- (a) the vendor provides particulars, to the satisfaction of the purchaser, that either—
 - (i) there are no debts secured against the property; or
 - (ii) if there are any debts, the total amount of those debts does not exceed 80% of the sale price; and
 - (b) at least 28 days have elapsed since the particulars were given to the purchaser under paragraph (a); and
 - (c) all conditions of section 27 of the **Sale of Land Act 1962** have been satisfied.
- 12.2 The stakeholder must pay the deposit and any interest to the party entitled when the deposit is released, the contract is settled, or the contract is ended.
- 12.3 The stakeholder may pay the deposit and any interest into court if it is reasonable to do so.

13. GST

- 13.1 The purchaser does not have to pay the vendor any GST payable by the vendor in respect of a taxable supply made under this contract in addition to the price unless the particulars of sale specify that the price is 'plus GST'. However, the purchaser must pay to the vendor any GST payable by the vendor:
- (a) solely as a result of any action taken or intended to be taken by the purchaser after the day of sale, including a change of use; or
 - (b) if the particulars of sale specify that the supply made under this contract is of land on which a farming business is carried on and the supply (or a part of it) does not satisfy the requirements of section 38-480 of the GST Act; or
 - (c) if the particulars of sale specify that the supply made under this contract is of a going concern and the supply (or a part of it) does not satisfy the requirements of section 38-325 of the GST Act.
- 13.2 The purchaser must pay to the vendor any GST payable by the vendor in respect of a taxable supply made under this contract in addition to the price if the particulars of sale specify that the price is 'plus GST'.
- 13.3 If the purchaser is liable to pay GST, the purchaser is not required to make payment until provided with a tax invoice, unless the margin scheme applies.
- 13.4 If the particulars of sale specify that the supply made under this contract is of land on which a 'farming business' is carried on:
- (a) the vendor warrants that the property is land on which a farming business has been carried on for the period of 5 years preceding the date of supply; and
 - (b) the purchaser warrants that the purchaser intends that a farming business will be carried on after settlement on the property.
- 13.5 If the particulars of sale specify that the supply made under this contract is a 'going concern':
- (a) the parties agree that this contract is for the supply of a going concern; and
 - (b) the purchaser warrants that the purchaser is, or prior to settlement will be, registered for GST; and
 - (c) the vendor warrants that the vendor will carry on the going concern until the date of supply.
- 13.6 If the particulars of sale specify that the supply made under this contract is a 'margin scheme' supply, the parties agree that the margin scheme applies to this contract.
- 13.7 This general condition will not merge on either settlement or registration.
- 13.8 In this general condition:
- (a) 'GST Act' means **A New Tax System (Goods and Services Tax) Act 1999 (Cth)**; and
 - (b) 'GST' includes penalties and interest.

14. Loan

- 14.1 If the particulars of sale specify that this contract is subject to a loan being approved, this contract is subject to the lender approving the loan on the security of the property by the approval date or any later date allowed by the vendor.
- 14.2 The purchaser may end the contract if the loan is not approved by the approval date, but only if the purchaser:
- (a) immediately applied for the loan; and
 - (b) did everything reasonably required to obtain approval of the loan; and
 - (c) serves written notice ending the contract on the vendor within 2 clear business days after the approval date or any later date allowed by the vendor; and
 - (d) is not in default under any other condition of this contract when the notice is given.
- 14.3 All money must be immediately refunded to the purchaser if the contract is ended.

15. Adjustments

- 15.1 All periodic outgoings payable by the vendor, and any rent and other income received in respect of the property must be apportioned between the parties on the settlement date and any adjustments paid and received as appropriate.
- 15.2 The periodic outgoings and rent and other income must be apportioned on the following basis:
- (a) the vendor is liable for the periodic outgoings and entitled to the rent and other income up to and including the day of settlement; and
 - (b) the land is treated as the only land of which the vendor is owner (as defined in the **Land Tax Act 2005**); and
 - (c) the vendor is taken to own the land as a resident Australian beneficial owner; and
 - (d) any personal statutory benefit available to each party is disregarded in calculating apportionment.

TRANSACTIONAL

16. Time

- 16.1 Time is of the essence of this contract.
- 16.2 Time is extended until the next business day if the time for performing any action falls on a Saturday, Sunday or bank holiday.

17. Service

- 17.1 Any document sent by:
- (a) post is taken to have been served on the next business day after posting, unless proved otherwise;
 - (b) email is taken to have been served at the time of receipt within the meaning of section 13A of the **Electronic Transactions (Victoria) Act 2000**.
- 17.2 Any demand, notice or document required to be served by or on any party may be served by or on the legal practitioner or conveyancer for that party. It is sufficiently served if served on the party or on the legal practitioner or conveyancer—
- (a) personally; or
 - (b) by pre-paid post; or
 - (c) in any manner authorised by law or the Supreme Court for service of documents, including any manner authorised for service on or by a legal practitioner; or
 - (d) by email.
- 17.3 This general condition applies to the service of any demand, notice or document by or on any party, whether the expression 'give' or 'serve' or any other expression is used.

18. Nominee

The purchaser may nominate a substitute or additional transferee, but the named purchaser remains personally liable for the due performance of all the purchaser's obligations under this contract.

19. Liability of signatory

Any signatory for a proprietary limited company purchaser is personally liable for the due performance of the purchaser's obligations as if the signatory were the purchaser in the case of a default by a proprietary limited company purchaser.

20. Guarantee

The vendor may require one or more directors of the purchaser to guarantee the purchaser's performance of this contract if the purchaser is a proprietary limited company.

21. Notices

The purchaser is responsible for any notice, order, demand or levy imposing liability on the property that is issued or made on or after the day of sale that does not relate to periodic outgoings. The purchaser may enter the property to comply with that responsibility where action is required before settlement.

22. Inspection

The purchaser and/or another person authorised by the purchaser may inspect the property at any reasonable time during the 7 days preceding and including the settlement day.

23. Terms contract

23.1 If this is a 'terms contract' as defined in the **Sale of Land Act 1962**:

- (a) any mortgage affecting the land sold must be discharged as to that land before the purchaser becomes entitled to possession or to the receipt of rents and profits unless the vendor satisfies section 29M of the **Sale of Land Act 1962**; and
- (b) the deposit and all other money payable under the contract (other than any money payable in excess of the amount required to so discharge the mortgage) must be paid to a legal practitioner or conveyancer or a licensed estate agent to be applied in or towards discharging the mortgage.

23.2 While any money remains owing each of the following applies:

- (a) the purchaser must maintain full damage and destruction insurance of the property and public risk insurance noting all parties having an insurable interest with an insurer approved in writing by the vendor;
- (b) the purchaser must deliver copies of the signed insurance application forms, the policies and the insurance receipts to the vendor not less than 10 days before taking possession of the property or becoming entitled to receipt of the rents and profits;
- (c) the purchaser must deliver copies of any amendments to the policies and the insurance receipts on each amendment or renewal as evidence of the status of the policies from time to time;
- (d) the vendor may pay any renewal premiums or take out the insurance if the purchaser fails to meet these obligations;
- (e) insurance costs paid by the vendor under paragraph (d) must be refunded by the purchaser on demand without affecting the vendor's other rights under this contract;
- (f) the purchaser must maintain and operate the property in good repair (fair wear and tear excepted) and keep the property safe, lawful, structurally sound, weatherproof and free from contaminations and dangerous substances;
- (g) the property must not be altered in any way without the written consent of the vendor which must not be unreasonably refused or delayed;
- (h) the purchaser must observe all obligations that affect owners or occupiers of land;
- (i) the vendor and/or other person authorised by the vendor may enter the property at any reasonable time to inspect it on giving 7 days written notice, but not more than twice in a year.

24. Loss or damage before settlement

24.1 The vendor carries the risk of loss or damage to the property until settlement.

24.2 The vendor must deliver the property to the purchaser at settlement in the same condition it was in on the day of sale, except for fair wear and tear.

- 24.3 The purchaser must not delay settlement because one or more of the goods is not in the condition required by general condition 24.2, but may claim compensation from the vendor after settlement.
- 24.4 The purchaser may nominate an amount not exceeding \$5,000 to be held by a stakeholder to be appointed by the parties if the property is not in the condition required by general condition 24.2 at settlement.
- 24.5 The nominated amount may be deducted from the amount due to the vendor at settlement and paid to the stakeholder, but only if the purchaser also pays an amount equal to the nominated amount to the stakeholder.
- 24.6 The stakeholder must pay the amounts referred to in general condition 24.5 in accordance with the determination of the dispute, including any order for payment of the costs of the resolution of the dispute.

25. Breach

A party who breaches this contract must pay to the other party on demand:

- (a) compensation for any reasonably foreseeable loss to the other party resulting from the breach; and
- (b) any interest due under this contract as a result of the breach.

DEFAULT

26. Interest

Interest at a rate of 2% per annum plus the rate for the time being fixed by section 2 of the **Penalty Interest Rates Act 1983** is payable on any money owing under the contract during the period of default, without affecting any other rights of the offended party.

27. Default notice

- 27.1 A party is not entitled to exercise any rights arising from the other party's default, other than the right to receive interest and the right to sue for money owing, until the other party is given and fails to comply with a written default notice.
- 27.2 The default notice must:
- (a) specify the particulars of the default; and
 - (b) state that it is the offended party's intention to exercise the rights arising from the default unless, within 14 days of the notice being given —
 - (i) the default is remedied; and
 - (ii) the reasonable costs incurred as a result of the default and any interest payable are paid.

28. Default not remedied

- 28.1 All unpaid money under the contract becomes immediately payable to the vendor if the default has been made by the purchaser and is not remedied and the costs and interest are not paid.
- 28.2 The contract immediately ends if:
- (a) the default notice also states that unless the default is remedied and the reasonable costs and interest are paid, the contract will be ended in accordance with this general condition; and
 - (b) the default is not remedied and the reasonable costs and interest are not paid by the end of the period of the default notice.
- 28.3 If the contract ends by a default notice given by the purchaser:
- (a) the purchaser must be repaid any money paid under the contract and be paid any interest and reasonable costs payable under the contract; and
 - (b) all those amounts are a charge on the land until payment; and
 - (c) the purchaser may also recover any loss otherwise recoverable.
- 28.4 If the contract ends by a default notice given by the vendor:
- (a) the deposit up to 10% of the price is forfeited to the vendor as the vendor's absolute property, whether the deposit has been paid or not; and
 - (b) the vendor is entitled to possession of the property; and

- (c) in addition to any other remedy, the vendor may within one year of the contract ending either:
 - (i) retain the property and sue for damages for breach of contract; or
 - (ii) resell the property in any manner and recover any deficiency in the price on the resale and any resulting expenses by way of liquidated damages; and
 - (d) the vendor may retain any part of the price paid until the vendor's damages have been determined and may apply that money towards those damages; and
 - (e) any determination of the vendor's damages must take into account the amount forfeited to the vendor.
- 28.5 The ending of the contract does not affect the rights of the offended party as a consequence of the default.

**Law Institute of Victoria
Property Law Dispute Resolution Committee
GUIDELINES and REQUIREMENTS**

The Committee decides disputes relating to real property matters. Where one party is not represented by a legal practitioner or licensed conveyancer who is a member of the Australian Institute of Conveyancers, the dispute cannot be heard until that party instructs a legal practitioner or licensed conveyancer who is a member of the Australian Institute of Conveyancers.*

An *agreed* Statement of Facts submitted in the dispute *must* be signed by *all* referring legal practitioners and *must* include:

- 1.1 A clear and concise statement of all the relevant *agreed* facts upon which the dispute is based. The Committee is unable to make any decision unless the facts are *agreed* between the parties;
- 1.2 The *issues for resolution*, based upon the *agreed* facts, to be decided by the Committee;
- 1.3 Any *contentions* that either party wishes to make;
- 1.4 Complete and legible copies of all *relevant documents*;
- 1.5 A signed agreement by the referring solicitors and the parties to be bound by the Committee's decision on any questions of law or practice.

Applications, in the form supplied by the Law Institute of Victoria (LIV), must be lodged with the Secretary of the Property Law Dispute Resolution Committee C/- the Law Institute of Victoria.

An administration fee of \$100.00 for *each* referring party who is a member of the Law Institute of Victoria must be paid when the application is lodged. A fee of \$200.00 is payable for each referring party who is not a member of the Law Institute of Victoria.

The Committee's decision will be based upon the material submitted. In making its decision the Committee shall act as an expert panel and not as an arbitrator.

The Committee reserves the right –

- i) to call for further and better particulars or documents in order to consider the dispute or make a decision.
- ii) to refuse to decide any dispute, in which case any fees will be refunded in full.

The Committee's written decision will be sent to the referring legal practitioners following the dispute being decided.

* Note: in circumstances where a legal practitioner (firm) or conveyancer may have acted for both parties, the parties must be independently represented for the purpose of referring the dispute to the Committee.

**The Guidelines and form are available on the LIV website at
www.liv.asn.au/Professional Practice/Areas of Law/Property-Law/Resources.

SPECIAL CONDITIONS

Special Condition 1 - Electronic Conveyancing

- 1.1 This special condition has priority over any other provision to the extent of any inconsistency. This special condition applies if the contract specifies, or the parties subsequently agree in writing, that settlement and lodgement of the instruments necessary to record the purchaser as registered proprietor of the land will be conducted electronically in accordance with the Electronic Conveyancing National Law.
- 1.2 A party must immediately give written notice if that party reasonably believes that settlement and lodgement can no longer be conducted electronically.
- 1.3 Each party must:
 - (a) be, or engage a representative who is, a subscriber for the purposes of the Electronic Conveyancing National Law,
 - (b) ensure that all other persons for whom that party is responsible and who are associated with this transaction are, or engage, a subscriber for the purposes of the Electronic Conveyancing National Law, and
 - (c) conduct the transaction in accordance with the Electronic Conveyancing National Law.
- 1.4 The vendor must open the Electronic Workspace ("workspace") as soon as reasonably practicable. The workspace is an electronic address for the service of notices and for written communications for the purposes of any electronic transactions legislation.
- 1.5 The vendor must nominate a time of the day for locking of the workspace at least 7 days before the due date for settlement.
- 1.6 Settlement occurs when the workspace records that:
 - (a) the exchange of funds or value between financial institutions in accordance with the instructions of the parties has occurred; or
 - (b) if there is no exchange of funds or value, the documents necessary to enable the purchaser to become registered proprietor of the land have been accepted for electronic lodgement.
- 1.7 The parties must do everything reasonably necessary to effect settlement:
 - (a) electronically on the next business day; or
 - (b) at the option of either party, otherwise than electronically as soon as possible – if, after the locking of the workspace at the nominated settlement time, settlement in accordance with special condition 1.6 has not occurred by 4.00pm, or 6.00pm if the nominated time for settlement is after 4.00pm.
- 1.8 Each party must do everything reasonably necessary to assist the other party to trace and identify the recipient of any mistaken payment and to recover the mistaken payment.
- 1.9 The vendor must before settlement:
 - (a) delivery any keys, security devices and codes ("keys") to the estate agent named in the contract,
 - (b) direct the estate agent to give the keys to the purchaser or the purchaser's nominee on notification of settlement by the vendor, the vendor's subscriber or the Electronic Network Operator,

- (c) deliver all other physical documents and items (other than the goods sold by the contract) to which the purchaser is entitled at settlement, and any keys if not delivered to the estate agent, to the vendor's subscriber or, if there is no vendor's subscriber, confirm in writing to the purchaser that the vendor holds those documents, items and keys at the vendor's address set out in the contract, and
- (d) direct the vendor's subscriber to give (or, if there is no vendor's subscriber, give) all those documents and items, any such keys, to the purchaser or the purchaser's nominee on notification of settlement by the Electronic Network Operator.

1.10 The vendor must, at least 7 days before the due date for settlement, provide the original of any document required to be prepared by the vendor in accordance with general condition 6.

Special Condition 2 - GST withholding

The following conditions apply if the Particulars of Sale specify this sale includes a taxable supply of residential premises or potential residential land as defined in the Taxation Administration Act 1953 (Cth) as amended by Treasury Laws Amendment (2018 Measures No.1) Act 2018 (Cth) (GST Act). The section references are to Schedule 1 of the GST Act and asterisked terms have the same meanings as when used in that schedule.

2.1 Vendor's Notice

- (a) If the Particulars of Sale indicates that no GST withholding is payable, the Vendor hereby gives notice under section 14-255 that the Purchaser is not required to make a GST withholding payment under section 14-250 of the GST Act.
- (b) If the Particulars of Sale indicates that GST withholding is required by the Purchaser under the GST Act, the Vendor hereby gives notice to the Purchaser that the Purchaser is required to withhold an amount of the consideration payable to the Vendor and pay it to the Commissioner in relation to the supply of the property. The Vendor is required to give any further details to the Purchaser/Nominee of the amount to be withheld by the Purchaser and any other matters at least 14 days prior settlement.

2.2 Amount to be withheld by the Purchaser

- (a) Where the margin scheme applies 7% of the purchase price; otherwise
- (b) 1/11th of the consideration inclusive of GST (which may include non-cash consideration).

2.3 If the GST withholding is required by the Purchaser under the GST Act, the Purchaser must:

- (a) notify Australian Taxation Office and obtain a payment reference number to accompany payment;
- (b) complete and lodge such returns as the Commissioner may require to enable payment of the withholding sum; and
- (c) at settlement, give the Vendor a bank cheque payable to the Commissioner for the withholding sum; or
- (d) on the settlement date or within such further period (if any) as may be allowed by the Commissioner, pay the withholding sum to the Commissioner.

Except where the Purchaser has complied with sub-paragraph (c) or settlement has occurred using an Electronic Lodgement Network Operator, the Purchaser must provide the Vendor with evidence of payment of the withholding sum as soon as practicable after payment.

2.4 If the Purchaser gives to the Vendor at settlement a bank cheque payable to the Commissioner for the withholding sum, the Vendor must, on the settlement date or within such further period (if any) as may be allowed by the Commissioner, deposit the bank cheque to the credit of the Commissioner.

- 2.5 An amount withheld and paid as required by section 14-250 or applied as described in section 16-30(3) is treated as having been paid to the Vendor.
- 2.6 Except as expressly set out in this special condition, the rights and obligations of the parties under this contract including, without restriction, any obligation of the Vendor to apply the margin scheme, are unchanged.
- 2.7 In this special condition, "settlement" means the time when the first *consideration for the *supply (other than consideration provided as a deposit) is first provided.

Special Condition 3 - Duties Form and Settlement Statement

- 3.1 In this Special Condition:
 - (a) Duties Form means the Digital Duties Form on the State Revenue Office website; and
 - (b) Settlement Statement means the Settlement Statement on the State Revenue Office website.
- 3.2 The Vendor must:
 - (a) Complete the parts of the Duties Forms which are to be completed by the Vendor (Vendor Duties Form);
 - (b) Send the completed Vendor Duties Form to the Purchaser at least 15 business days prior to the Settlement Date; and
 - (c) If the Purchaser has complied with sub-clause 3 of this Special Condition, sign or approve the Duties Form prior to Settlement, unless there is a manifest error in which case the Vendor must notify the Purchaser and request the Purchaser to amend it.
- 3.3 The Purchaser must:
 - (a) Complete the parts of the Duties Form which are to be completed by the Purchaser (Purchaser Duties Form) at least 10 business days prior to the Settlement Date;
 - (b) Sign or approve the Duties Form at least 5 business days prior to the Settlement Date, unless there is a manifest error in which case the Purchaser must promptly notify the Vendor of the error and request the Vendor to amend it;
 - (c) Make any changes to the Duties Form requested by the Vendor and sign or approve (or re-sign and re-approve) the amended Duties Form within 3 business days of being requested to do so; and
 - (d) Prior to settlement:
 - (i) Generate a Settlement Statement; and
 - (ii) Deliver the Settlement Statement to the Vendor.
- 3.4 The Purchaser may not make any claim, delay settlement or seek compensation if the Vendor requests amendments to the Duties Form prior to settlement.
- 3.5 Sub-clause 6 of this Special Condition applies if settlement is not conducted electronically in accordance with the Electronic Conveyancing National Law, otherwise sub-clause 7 of this Special Condition applies.
- 3.6 Subject to the Vendor complying with sub-clause 2 of this Special Condition:
 - (a) Settlement is not conditional on:
 - (i) The Purchaser signing or approving a Duties Form; and
 - (ii) Production of a Settlement Statement; and
 - (b) The Purchaser may not make any claim if:
 - (i) The Duties Form is not completed prior to Settlement or at all; or
 - (ii) The Settlement Statement is not generated (or able to be generated) prior to Settlement.

- 3.7 The Purchaser acknowledges and agrees that unless and until the Purchaser complies with sub-clause 3 of this Special Condition:
 - (a) Settlement will not proceed; and
 - (b) The Purchaser will be in breach of this Contract.
- 3.8 The Purchaser acknowledges and agrees that the Duties Form (other than the Vendor Duties Form) and the Settlement Statement are not the title documents under General Condition 10.2(b)(i).

Special Condition 4 – Foreign Resident Capital Gains Withholding

- 4.1 Words defined or used in Subdivision 14-D of Schedule 1 to the **Taxation Administration Act 1953 (Cth)** have the same meaning as in this special condition unless the context requires otherwise.
- 4.2 Every vendor under this contract is a foreign resident for the purposes of this special condition unless the vendor give the purchaser a clearance certificate issued by the Commissioner under section 14-220(1) of Schedule 1 to the **Taxation Administration Act 1953 (Cth)**. The specified period in the clearance certificate must include the actual date of settlement.
- 4.3 This special condition only applies if the purchaser is required to pay the Commissioner an amount in accordance with Section 14-200(3) or section 14-235 of Schedule 1 to the **Taxation Administration Act 1953 (Cth)** ("the amount") because one or more of the vendors is a foreign resident, the property has or will have a market value not less than the amount set out in section 14-215 of the legislation just after the transaction, and the transaction is not excluded under section 14-215(1) of the legislation.
- 4.4 The amount is to be deducted from the vendor's entitlement to the contract consideration. The vendor must pay to the purchaser at settlement such part of the amount as is represented by non-monetary consideration.
- 4.5 The purchaser must:
 - (a) engage a legal practitioner or conveyancer ("representative") to conduct all the legal aspects of settlement, including the performance of the purchaser's obligations in this special condition; and
 - (b) ensure that the representative does so.
- 4.6 The terms of the representative's engagement are taken to include instructions to have regard to the vendor's interests and instructions that the representative must:
 - (a) pay, or ensure payment of, the amount to the Commissioner in the manner required by the Commissioner and as soon as reasonably and practicably possible, from moneys under the control or direction of the representative in accordance with this special condition if the sale of the property settles;
 - (b) promptly provide the vendor with proof of payment; and
 - (c) otherwise comply, or ensure compliance with, this special condition;
 despite:
 - (d) any contrary instructions, other than from both the purchaser and the vendor; and
 - (e) any other provision in this contract to the contrary.
- 4.7 The representative is taken to have complied with the obligations in special condition 4.6 if:
 - (a) the settlement is conducted through the electronic conveyancing system operated by Property Exchange Australia Ltd or any other electronic conveyancing system agreed by the parties; and
 - (b) the amount is included in the settlement statement requiring payment to the Commissioner in respect of this transaction.

- 4.8 Any clearance certificate or document evidencing variation of the amount in accordance with section 14-235(2) of Schedule 1 to the **Taxation Administration Act 1953 (Cth)** must be given to the purchaser at least 5 business days before the due date for settlement.
- 4.9 The vendor must provide the purchaser with such information as the purchaser requires to comply with the purchaser's obligation to pay the amount in accordance with section 14-200 of Schedule 1 to the **Taxation Administration Act 1953 (Cth)**. The information must be provided within 5 business days of request by the purchaser. The vendor warrants that the information the vendor provides is true and correct.
- 4.10 The purchaser is responsible for any penalties or interest payable to the Commissioner on account of late payment of the amount.

Special Condition 5 - Acceptance of Title

General condition 12.4 is added:

- 12.4 Where the purchaser is deemed by section 27(7) of the **Sale of Land Act 1962** to have given the deposit release authorisation referred to in section 27(1), the purchaser is also deemed to have accepted title in the absence of any prior express objection to title.

Special Condition 6 – Service

General condition 17.1(a) is deleted and replaced by the following:

17.1(a) Any document sent by:

- (i) express post is taken to be served the next business day after posting by express post;
- (ii) priority post is taken to be served 4 business days after posting by priority mail; and
- (iii) regular mail is taken to be served 6 business days after posting by regular mail.

Special Condition 7 – Dwelling

The land and buildings (if any) as sold hereby and inspected by the Purchaser is sold on the basis of existing improvements thereon and the Purchaser shall not make any requisition or claim any compensation for any deficiency or defect in the said improvements as to their suitability for occupation or otherwise including any requisition in relation to the issue or non-issue of Building Permits and/or completion of inspection by the relevant authorities in respect of any improvements herein.

Special Condition 8 – Services

Pending settlement the Vendor may, and shall be at liberty to, disconnect any utilities, including but not limited to electricity and telephone, that may be connected to and/or servicing the Property on the Day of Sale; the Purchaser shall be wholly responsible for the cost of reconnection of any services to the Property and no claim shall be made against the Vendor in relation thereto.

Special Condition 9 – Force Majeure

In the event either party is unable to perform its obligations under the terms of this contract of sale because of acts of God, strikes, failure of carrier or utilities, equipment or transmission failure or damage that is reasonably beyond its control, or as a result of any failure of any necessary systems such as PEXA, Duties Online and Land Use Victoria such party shall not be liable for damages to any other for any damages resulting from such failure to perform or otherwise from such causes. Performance under this contract of sale shall resume when the affected party or parties are able to perform substantially that party's duties and obligations.

GUARANTEE & INDEMNITY

Guarantor Name:
Address:

Guarantor Name:
Address:

(Hereinafter called the "Guarantor") IN CONSIDERATION of the Vendor having agreed, at the Guarantor' s request (as is hereby acknowledged), to enter into the annexed Contract with the Purchaser HEREBY JOINTLY AND SEVERALLY AND IRREVOCABLY GUARANTEES to the Vendor payment of the whole of the purchase money interest and other moneys due and payable under the Contract and the due observance and performance by the Purchaser of all covenants and provisions binding on the Purchaser thereunder or pursuant to any other agreement made between the Purchaser and the Vendor and the discharge by the Purchaser of any liability which it may have to the Vendor pursuant to the cancellation or determination of the Contract or such other agreement due to any default by the Purchaser. To the extent (if any) that the Guarantee set out above may be void or unenforceable in whole or in part by reason of the infancy or any other incapacity of the Purchaser or want of writing or other failure to comply with any law the Guarantor agrees to indemnify the Vendor in respect of any failure by the Purchaser to make any such payment as would otherwise have formed part of the moneys the subject of the Guarantee and in addition the Guarantor agrees to indemnify the Vendor in respect of any claim by the Purchaser to any refund to which the Purchaser may become entitled by virtue of all or any of the above described facts.

The Guarantor agrees and covenants that:

1. In this Guarantee unless the context otherwise requires:
 - 1.1 "**Contract**" means the Contract of Sale of Real Estate attached to or to which this Guarantee is attached;
 - 1.2 "**Guarantee**" means this document of guarantee and indemnity and the guarantee and indemnity contained herein;
 - 1.3 "**Guarantor**" means and includes each of the person or persons or companies described above and their respective heirs, executors and administrators, successors and assigns;
 - 1.4 "**Obligations**" means and includes all covenants and provisions binding on the Purchaser under the Contract or pursuant to any other agreement made between the Purchaser and the Vendor;
 - 1.5 "**Purchaser**" means the person or company so described in the Contract and that person's or company's executors, administrators, successors and assigns; and
 - 1.6 "**Vendor**" means the person or company so described in the Contract and that person's or company's executors, administrators, successors and assigns.
2. This Guarantee is a continuing guarantee and indemnity and is without prejudice to and is not affected nor are the rights and remedies of the Vendor against the Guarantor in any way prejudiced or affected by:
 - 2.1 any neglect or forbearance on the part of the Vendor in enforcing payment of any of the moneys payable under the Contract or by time being given to the Purchaser for any such payment performance or observance or by any other thing which under the law relating to sureties would or might but for this provision have the effect of releasing the Guarantor; or
 - 2.2 any variation, modification, amendment or novation of the Contract or substitution thereof.
3. The Guarantor shall pay the Vendor on demand:
 - 3.1 All moneys and interest (if any) payable under the Contract;
 - 3.2 All costs charges expenses that may be incurred by the Vendor for the purpose of recovering the amount owing to the Vendor under the Contract.

- 4 The service of a demand shall not be a condition precedent to the enforcement of the Guarantor's liability hereunder.
- 5 If the liability of the Purchaser to pay all or any part of the moneys or to perform any obligation the subject of this Guarantee is released or deferred under any scheme of arrangement between the Purchaser and its creditors (or in any way whatsoever) the Guarantor agrees to indemnify the Vendor against any failure by the Purchaser to pay all or any part of the money or to perform any obligation the subject of this Guarantee at the time or times the money should be paid or the obligation performed apart from such scheme of arrangement or other event or any release or deferral of the Purchaser's liability thereunder.
- 6 The Vendor shall be at liberty to require payment by the Guarantor of any moneys owing to the Vendor by the Purchaser without taking any proceedings first to enforce such payment by the Purchaser.
- 7 The Guarantor shall pay to the Vendor the Vendor's reasonable costs (including solicitor / own client legal costs and disbursements) of and incidental to the enforcement of this Guarantee.
- 8 If the Guarantor consists of more than one person or company this Guarantee is binding on them jointly and severally.

EXECUTED BY THE PARTIES AS A DEED:

This day of 2020

SIGNED SEALED AND DELIVERED)
by the said)
in the presence of:)

.....
Signature of Witness

.....
Name of Witness (please print)

SIGNED SEALED AND DELIVERED)
by the said)
in the presence of:)

.....
Signature of Witness

.....
Name of Witness (please print)

Vendor: THOMAS EMPIRE PTY LTD A.C.N. 152 384 293

Purchaser:

Vendors Statement

UNIT 1, 39 POWLETT STREET, ALTONA MEADOWS VIC 3028

**VENDORS STATEMENT TO THE PURCHASER OF REAL ESTATE
PURSUANT TO SECTION 32
OF THE SALE OF LAND ACT 1962 ("the Act")**

VENDOR: THOMAS EMPIRE PTY LTD A.C.N. 152 384 293

PROPERTY: UNIT 1, 39 POWLETT STREET, ALTONA MEADOWS VIC 3028

1. FINANCIAL MATTERS:

- 1.1 Any mortgage over the Property will be discharged at or before settlement.
- 1.2 Details of any charge over the Property (including the amount owing under the charge):
If any, are set out in the attached document.
- 1.3 Information concerning any rates, taxes, charges or other similar outgoings (including any Body Corporate charges) **AND** any interest payable on any part of them:
Is contained in the attached certificates.
- 1.4 Any amounts (including any proposed Body Corporate levy) for which the Purchaser may become liable in consequence of the purchase of the Property, are as follows:
The usual adjustment of rates taxes and outgoings made at settlement.

NOTE: The Purchaser shall be responsible for any additional or supplemental rate or charge made by any responsible authority arising after the Settlement Date.

2. INSURANCE:

- 2.1 The Property will be at the risk of the Vendor until the Purchaser becomes entitled to possession or receipt of the rents and profits of the Property.
- 2.2 Particulars of any required insurance in relation to any residence on the Property constructed by an owner builder in the preceding six years (required where the property includes a residence to which Section 137B of the Building Act 1993):
None to the Vendor's knowledge.

3. LAND USE:

- 3.1 Information concerning any easement, covenant or other similar restriction (including any caveat) affecting the Property (registered or unregistered):
 - (a) Description -
As set out in the attached copies of title documents.
 - (b) Particulars of any failure to comply:
None to the Vendor's knowledge
- 3.2 **Bushfire Areas**
This property is not in a designated bushfire prone area.
- 3.3 **Road Access**
There is access to the property by road.
- 3.4 **Planning**
Information concerning any planning instrument:
Is contained in the attached certificate.

4. NOTICES:

- 4.1 Particulars of any notice, order, declaration, report or recommendation of a public authority or government department or approved proposal directly and currently affecting the Property being a notice, order, declaration, report recommendation or approved proposal of which the Vendor might reasonably be expected to have knowledge:
None to the Vendor's knowledge.

- 4.2 Particulars of any notices, property management plans, reports or orders in respect of the land issued by a government department or public authority in relation to livestock disease or contamination by agricultural chemicals affecting the ongoing use of the land for agricultural purposes:
None to the Vendor's knowledge.
- 4.3 Particulars of any notice pursuant to section 6 of the Land Acquisition and Compensation Act 1986.
None to the Vendor's knowledge.
- 5. BUILDING PERMITS:**
- 5.1 Particulars of any building permit issued under the Building Act 1993 in the preceding 7 years in relation to a building on the Property:
Are contained in the attached Certificate
- 6. OWNERS CORPORATION:**
- 6.1 The Owners Corporation is inactive.
- 7. GROWTH AREAS INFRASTRUCTURE CONTRIBUTION:**
- 7.1 The Property is not subject to a work in kind agreement (within the meaning of Part 9B of the Planning and Environment Act 1987).
- 7.2 The Property is not subject to a GAIC recording (within the meaning of Part 9B of the Planning and Environment Act 1987).
- 8. SERVICES:**
- 8.1 The following services are NOT connected to the Property:
N/A - Electricity, Gas, Water, Sewerage and Telephone are connected
- The Purchaser should check with the appropriate authorities as to the availability of, and the cost of providing, any essential services not connected to the land.
- 9. EVIDENCE OF TITLE:**
- 9.1 Attached are copies of the following documents concerning the title:
(a) Certificate of Title Volume 11688 Folio 133; and
(b) Plan of Subdivision 738777S.
- 10. DUE DILIGENCE CHECKLIST:**
- 10.1. A copy of the Due Diligence Checklist provided to the Purchaser is attached.

The Vendor makes this statement in respect of the land in accordance with section 32 of the **Sale of Land Act 1962**.

This Statement must be signed by the vendor and given to the purchaser before the purchaser signs the contract.

The vendor may sign by electronic signature.

DATE OF THIS STATEMENT:

/ /2020

25 April 2021

Signature of the Vendor/s:

L Thomas

.....

M. H.

.....

ACKNOWLEDGEMENT BY PURCHASER

The Purchaser acknowledges being given this statement signed by the vendor with the attached documents before the purchaser signed any contract.

DATE OF THIS ACKNOWLEDGEMENT:

/ /2020

26 April 2021

Signature of the Purchaser/s:

Rebecca Jane Hay

.....

Rebecca Jane Hay

.....

NOTICE REGARDING TERMS CONTRACTS

PLEASE NOTE that where the property is to be sold on terms pursuant to Section 32A(d) of the Act and/or sold subject to a Mortgage that is not to be discharged by the date of possession (or receipt of the rents and profits) of the Property pursuant to Section 32A(a) of the Act then the Vendor must provide an additional statement containing the particulars specified in Schedules 1 and 2 of the Act.

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REGISTER SEARCH STATEMENT (Title Search) Transfer of Land Act 1958

VOLUME 11688 FOLIO 133

Security no : 124086363887N
Produced 02/11/2020 03:06 PM

LAND DESCRIPTION

Lot 1 on Plan of Subdivision 738777S.
PARENT TITLE Volume 09128 Folio 225
Created by instrument PS738777S 29/06/2016

REGISTERED PROPRIETOR

Estate Fee Simple
Sole Proprietor
THOMAS EMPIRE PTY LTD of 405/388 KEILOR ROAD NIDDRIE VIC 3042
PS738777S 29/06/2016

ENCUMBRANCES, CAVEATS AND NOTICES

MORTGAGE AR691737S 26/11/2018
WESTPAC BANKING CORPORATION

Any encumbrances created by Section 98 Transfer of Land Act 1958 or Section 24 Subdivision Act 1988 and any other encumbrances shown or entered on the plan set out under DIAGRAM LOCATION below.

DIAGRAM LOCATION

SEE PS738777S FOR FURTHER DETAILS AND BOUNDARIES

ACTIVITY IN THE LAST 125 DAYS

NIL

-----END OF REGISTER SEARCH STATEMENT-----

Additional information: (not part of the Register Search Statement)

ADMINISTRATIVE NOTICES

NIL

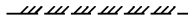
eCT Control 16977H ST GEORGE BANK
Effective from 26/11/2018

OWNERS CORPORATIONS

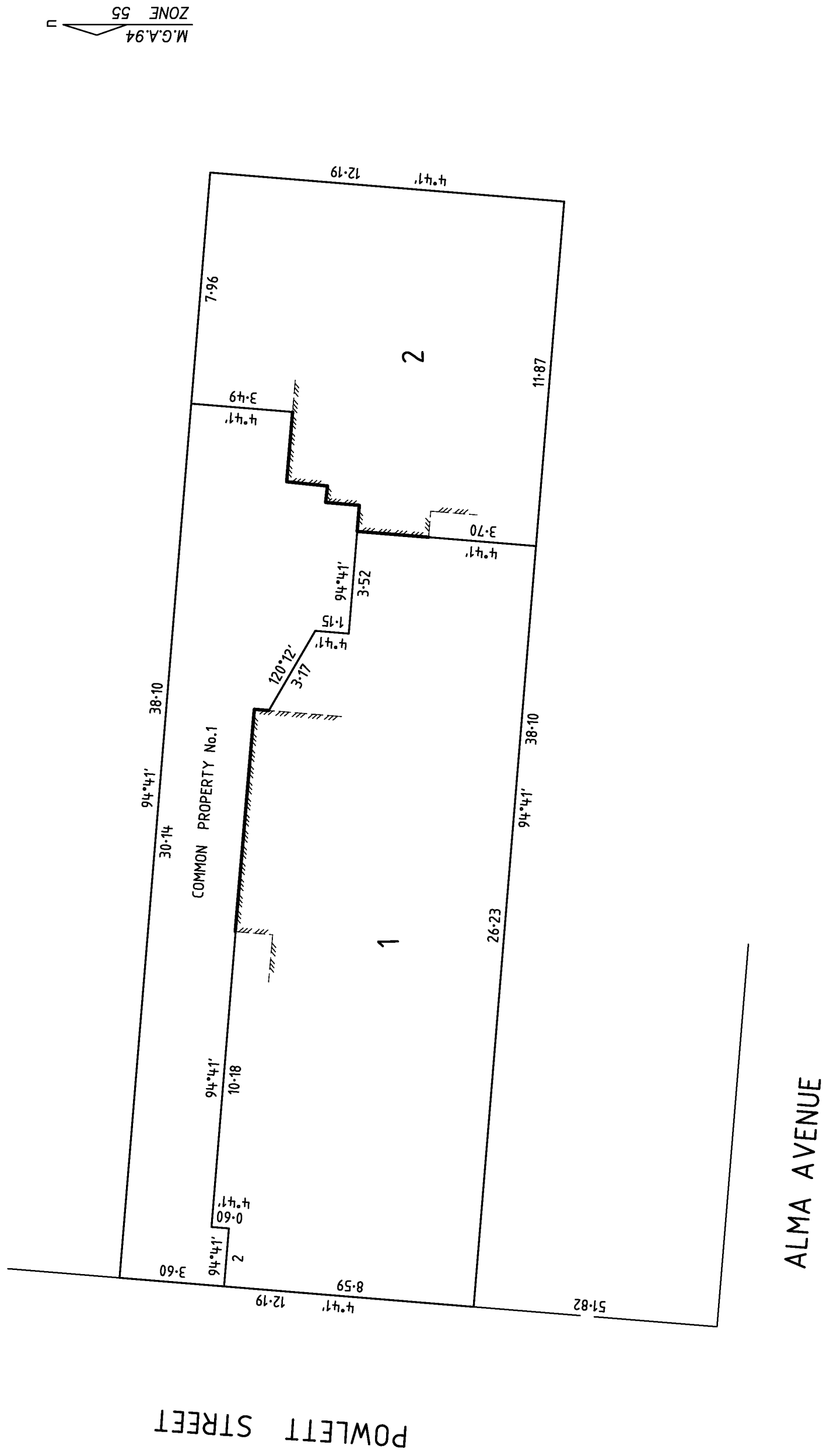
The land in this folio is affected by
OWNERS CORPORATION 1 PLAN NO. PS738777S

DOCUMENT END

Delivered from the LANDATA® System by GlobalX Pty Ltd

PLAN OF SUBDIVISION				LRS use only EDITION 1	PS 738777S
Location of Land Parish: TRUGANINA Township: LAVERTON Section: 6 Crown Allotment: - Crown Portion: 1 (PART) Title Reference: VOL 9128 FOL 225 Last Plan Reference: LOT 1 ON TP 182457U Postal Address: 39 POWLETT STREET (at time of subdivision) ALTONA MEADOWS VIC 3028 MGA94 Co-ordinates (of approx. centre of Plan) E 304 880 N 5 806 470 Zone: 55				Council Name: Hobsons Bay City Council Council Reference Number: PA1532489 Planning Permit Reference: VS1532488 SPEAR Reference Number: S073583E Certification This plan is certified under section 6 of the Subdivision Act 1988 Public Open Space A requirement for public open space under section 18 of the Subdivision Act 1988 Has been made and the requirement has been satisfied at Certification Digitally signed by: Sarah McLaughlin for Hobsons Bay City Council on 21/03/2016	
Vesting of Roads and / or Reserves				Notations	
Identifier		Council / Body / Person		BOUNDARIES SHOWN BY THICK CONTINUOUS HATCHED LINES ARE DEFINED BY BUILDINGS. LOCATION OF BOUNDARIES DEFINED BY BUILDINGS: EXTERIOR FACE : ALL BOUNDARIES COMMON PROPERTY No.1 IS ALL THE LAND IN THIS PLAN EXCEPT FOR THE LAND CONTAINED IN LOTS 1 AND 2 LOTS IN THIS PLAN MAY BE AFFECTED BY ONE OR MORE OWNERS CORPORATIONS. SEE OWNERS CORPORATION SEARCH REPORT FOR DETAILS.  - DENOTES STRUCTURE (NON BOUNDARY)	
NIL		NIL			
Notations					
Depth Limitation		DOES NOT APPLY			
Survey This plan is based on survey This survey has been connected to permanent marks no(s)416 In Proclaimed Survey Area No. - STAGING This is not a staged subdivision Planning Permit No.					
Easement Information					
Legend: E - Encumbering Easement, Condition in Crown Grant in the Nature of an Easement or Other Encumbrance			A - Appurtenant Easement R - Encumbering Easement (Road)		
Easements & Rights implied by Section 12(2) of the Subdivision Act 1988 applies to the whole of the land in this plan.					
Easement Reference	Purpose	Width (Metres)	Origin	Land Benefited/In Favour Of	
 A.B.N 84 421 274 042 P. O. Box 8063, Tarneit VIC 3029 Unit 11/6-7 Motto Court, Hoppers Crossing VIC 3029 Tel : 0426 257 282 / 03 9749 1885			REF. 1526	Date 30 / 08 / 15	Original sheet size A3
			Digitally signed by: ROHITESH PARNISH CHARAN (Rasar Consulting Pty Ltd), Surveyor's Plan Version (A), 01/03/2016		Sheet 1 of 2 sheets
			PLAN REGISTERED TIME: 9:22AM DATE: 29/06/16 C.TRAN Assistant Registrar of Titles		

PS 738777S



RASAR
CONSULTING PTY LTD

A.B.N 84 421 274 042
P. O. Box 8063, Tarnait VIC 3029
Unit 11/6-7 Motto Court, Hoppers Crossing VIC 3029
Tel : 0426 257 282 / 03 9749 1885

SCALE

LENGTHS ARE IN METRES

A vertical scale bar with markings at 1.5, 0, 3, and 6. The text 'SCALE' is to the left of the bar, and 'LENGTHS ARE IN METRES' is to the right of the bar.

ORIGINAL
SCALE 1:150
SHEET SIZE A3

REF 1526

Digitally signed by: ROHITESH PARNISH CHARAN (Rasar Consulting Pty Ltd),
Surveyor's Plan Version (A),
01/03/2016

Digitally signed by:
Hobsons Bay City Council,
21/03/2016,
SPEAR Ref: S073583E

Sheet 2



Department of Environment, Land, Water & Planning

Owners Corporation Search Report

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Produced: 02/11/2020 03:10:10 PM

OWNERS CORPORATION 1
PLAN NO. PS738777S

The land in PS738777S is affected by 1 Owners Corporation(s)

Land Affected by Owners Corporation:

Common Property 1, Lots 1, 2.

Limitations on Owners Corporation:

Unlimited

Postal Address for Services of Notices:

39 POWLETT STREET ALTONA MEADOWS VIC 3028

OC030991L 29/06/2016

Owners Corporation Manager:

NIL

Rules:

Model Rules apply unless a matter is provided for in Owners Corporation Rules. See Section 139(3) Owners Corporation Act 2006

Owners Corporation Rules:

NIL

Additional Owners Corporation Information:

OC030991L 29/06/2016

Notations:

NIL

Entitlement and Liability:

NOTE – Folio References are only provided in a Premium Report.

Land Parcel	Entitlement	Liability
Common Property 1	0	0
Lot 1	50	50
Lot 2	50	50
Total	100.00	100.00

From 31 December 2007 every Body Corporate is deemed to be an Owners Corporation. Any reference to a Body Corporate in any Plan, Instrument or Folio is to be read as a reference to an Owners Corporation.



Department of Environment, Land, Water & Planning

Owners Corporation Search Report

Produced: 02/11/2020 03:10:10 PM

OWNERS CORPORATION 1
PLAN NO. PS738777S

Statement End.

PLANNING CERTIFICATE

Official certificate issued under Section 199 Planning & Environment Act 1987
and the Planning and Environment Regulations 2005

CERTIFICATE REFERENCE NUMBER

693593

APPLICANT'S NAME & ADDRESS

LEWIS OBRIEN C/- GX5
MELBOURNE

VENDOR

THOMAS EMPIRE PTY LTD

PURCHASER

N/A

REFERENCE

thom6-07

This certificate is issued for:

LOT 1 PLAN PS738777 ALSO KNOWN AS 1/39 POWLETT STREET ALTONA MEADOWS
HOBSONS BAY CITY

The land is covered by the:

HOBSONS BAY PLANNING SCHEME

The Minister for Planning is the responsible authority issuing the Certificate.

The land:

- is included in a GENERAL RESIDENTIAL ZONE - SCHEDULE 1

A detailed definition of the applicable Planning Scheme is available at :

<http://planningschemes.dpcd.vic.gov.au/schemes/hobsonsabay>

Historic buildings and land protected under the Heritage Act 1995 are recorded in the Victorian Heritage Register at:

<http://vhd.heritage.vic.gov.au/>

02 November 2020

Hon. Richard Wynne MP
Minister for Planning

Additional site-specific controls may apply.
The Planning Scheme Ordinance should be checked carefully.

The above information includes all amendments to planning scheme maps placed on public exhibition up to the date of issue of this certificate and which are still the subject of active consideration

Copies of Planning Schemes and Amendments can be inspected at the relevant municipal offices.

LANDATA®
2 Lonsdale Street
Melbourne VIC 3000
Tel: (03) 9194 0606



The attached certificate is issued by the Minister for Planning of the State of Victoria and is protected by statute.

The document has been issued based on the property information you provided. You should check the map below - it highlights the property identified from your information.

If this property is different to the one expected, you can phone (03) 9194 0606 or email landata.enquiries@delwp.vic.gov.au.

Please note: The map is for reference purposes only and does not form part of the certificate.



Choose the authoritative Planning Certificate

Why rely on anything less?

As part of your section 32 statement, the authoritative Planning Certificate provides you and / or your customer with the statutory protection of the State of Victoria.
Order online before 4pm to receive your authoritative Planning Certificate the same day, in most cases within the hour.
Next business day delivery, if further information is required from you.

Privacy Statement

The information obtained from the applicant and used to produce this certificate was collected solely for the purpose of producing this certificate. The personal information on the certificate has been provided by the applicant and has not been verified by LANDATA®. The property information on the certificate has been verified by LANDATA®. The zoning information on the certificate is protected by statute. The information on the certificate will be retained by LANDATA® for auditing purposes and will not be released to any third party except as required by law.



Property Report from www.land.vic.gov.au on 02 November 2020 03:12 PM

Address: UNIT 1/39 POWLETT STREET ALTONA MEADOWS 3028

Lot and Plan Number: Lot 1 PS738777

Standard Parcel Identifier (SPI): 1\PS738777

Local Government (Council): HOBSONS BAY **Council Property Number:** 4259000210

Directory Reference: Melway 53 G11

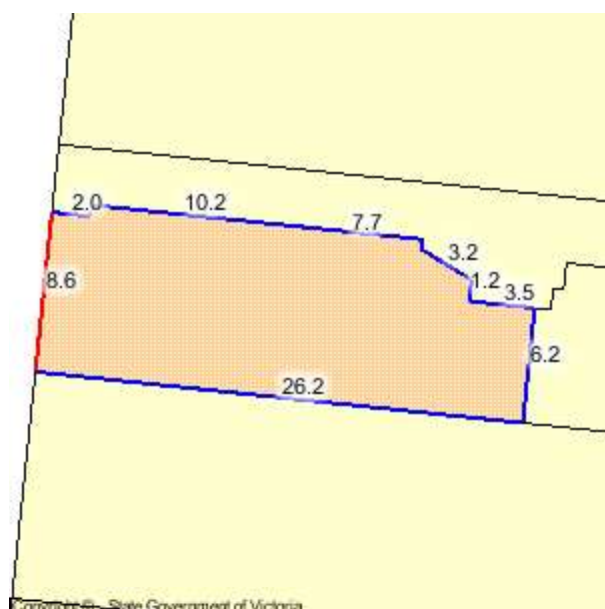
This property is not in a designated bushfire prone area.

No special bushfire construction requirements apply. Planning provisions may apply.

Further information about the building control system and building in bushfire prone areas can be found in the Building Commission section of the Victorian Building Authority website www.vba.vic.gov.au

Site Dimensions

All dimensions and areas are approximate. They may not agree with the values shown on a title or plan.



Area: 226 sq. m

Perimeter: 70 m

For this property:

— Site boundaries

— Road frontages

Dimensions for individual parcels require a separate search, but dimensions for individual units are generally not available.

2 dimensions shorter than 1m not displayed

Calculating the area from the dimensions shown may give a different value to the area shown above - which has been calculated using all the dimensions.

For more accurate dimensions get copy of plan at

[Title and Property Certificates](#)

State Electorates

Legislative Council: WESTERN METROPOLITAN

Legislative Assembly: ALTONA

Utilities

Rural Water Corporation: Southern Rural Water

Melbourne Water Retailer: City West Water

Melbourne Water: inside drainage boundary

Power Distributor: POWERCOR (Information about [choosing an electricity retailer](#))

Planning information continued on next page

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Planning Zone Summary

Planning Zone: GENERAL RESIDENTIAL ZONE (GRZ)
GENERAL RESIDENTIAL ZONE - SCHEDULE 1 (GRZ1)

Planning Overlay: None

Planning scheme data last updated on 28 October 2020.

A **planning scheme** sets out policies and requirements for the use, development and protection of land.

This report provides information about the zone and overlay provisions that apply to the selected land.

Information about the State and local policy, particular, general and operational provisions of the local planning scheme that may affect the use of this land can be obtained by contacting the local council or by visiting [Planning Schemes Online](#)

This report is NOT a **Planning Certificate** issued pursuant to Section 199 of the *Planning and Environment Act 1987*.

It does not include information about exhibited planning scheme amendments, or zonings that may affect the land.

To obtain a Planning Certificate go to [Titles and Property Certificates](#)

The Planning Property Report includes separate maps of zones and overlays

For details of surrounding properties, use this service to get the Reports for properties of interest

To view planning zones, overlay and heritage information in an interactive format visit [Planning Maps Online](#)

For other information about planning in Victoria visit www.planning.vic.gov.au

Area Map



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LAND INFORMATION CERTIFICATE

Section 229 Local Government Act 1989

This certificate provides information regarding valuations, rates, charges, other monies owing and any orders and notices made under the Local Government Act, 1989 or under any local laws of the Council. This certificate is not required to include information regarding planning, building, health, landfill, other flooding information or service easements. Information regarding these matters may be available from the Council or relevant authority. A fee may be charged for such information.

Prescribed Valuation Date:	01/01/2020	Effective Date:	1st July 2020
Property Number	4259000210	SV	210000
Property Address	1/39 Powlett St, Altona Meadows	CIV	385000
Lot No., Lodged Plan No. & Parish	L1 PS738777 V11688 F133	NAV	19250

NOTE: In accordance with Section 175 (1) of the Local Government Act 1989 the purchaser must pay all rates and charges outstanding at the time that person becomes the owner of the land.

Rates and charges for the financial year ending 30 June, 2021.		
<u>Rates and charges</u>	<u>Amount Raised</u>	<u>Balance</u>
General Rate	843.15	614.43
Green Waste Special Charge	0.00	0.00
Fire Service Property Levy	133.79	100.35
Garbage Charge	346.96	260.22
Legal Costs	0.00	0.00
Fire Hazard & Other Charges	0.00	0.00
Arrears of Rates and Charges		0.00
Interest raised to		0.00
RATES OUTSTANDING		\$975.00
Interest charges will be accrued @ 10% on overdue instalments.		
<u>Other Charges</u>	<u>Principal</u>	<u>Interest</u>
Private Streets Interest raised to		
Comments Note: Notice of Acquisition must be sent immediately after Settlement.		
Payment Options: B/Pay Biller Code: 39032 Reference No: 4259000210 0		
TOTAL MONIES OUTSTANDING		\$975.00

I hereby certify that as the date of issue, the information given in this certificate is a true and correct disclosure of the rates and other monies and interest payable to Hobsons Bay City Council, together with any notices or orders referred to in this certificate.

Lewis OBrien
c/- LANDATA via email



Delegated Officer



**** Delivered by the LANDATA® System, Department of Environment, Land, Water & Planning ****

ROADS PROPERTY CERTIFICATE

The search results are as follows:

Lewis OBrien
Suite 113, 89 High Street
KEW 3101

Client Reference: thom6-07

NO PROPOSALS. As at the 2th November 2020, VicRoads has no approved proposals requiring any part of the property described in your application. You are advised to check your local Council planning scheme regarding land use zoning of the property and surrounding area.

This certificate was prepared solely on the basis of the Applicant-supplied address described below, and electronically delivered by LANDATA®.

UNIT 1, 39 POWLETT STREET, ALTONA MEADOWS 3028
HOBSONS BAY CITY COUNCIL

This certificate is issued in respect of a property identified above. VicRoads expressly disclaim liability for any loss or damage incurred by any person as a result of the Applicant incorrectly identifying the property concerned.

Date of issue: 2th November 2020

Telephone enquiries regarding content of certificate: 13 11 71

[Vicroads Certificate] # 42190017 - 42190017151045 'thom6-07'

Land Tax Clearance Certificate

Land Tax Act 2005



LEWIS OBRIEN

Your Reference:	LD:42190017-009-7.THOM6-0
Certificate No:	40313673
Issue Date:	02 NOV 2020
Enquiries:	ESYSPROD

Land Address: UNIT 1, 39 POWLETT STREET ALTONA MEADOWS VIC 3028

Land Id	Lot	Plan	Volume	Folio	Tax Payable
43183174	1	738777	11688	133	\$1,038.44

Vendor: THOMAS EMPIRE PTY LTD
Purchaser: N/A

Current Land Tax	Year	Taxable Value	Proportional Tax	Penalty/Interest	Total
THOMAS GROUP TRUST	2020	\$205,000	\$1,038.44	\$0.00	\$1,038.44

Comments:

Current Vacant Residential Land Tax	Year	Taxable Value	Proportional Tax	Penalty/Interest	Total
-------------------------------------	------	---------------	------------------	------------------	-------

Comments:

Arrears of Land Tax	Year	Proportional Tax	Penalty/Interest	Total
---------------------	------	------------------	------------------	-------

This certificate is subject to the notes that appear on the reverse. The applicant should read these notes carefully.


Paul Broderick
Commissioner of State Revenue

CAPITAL IMP VALUE:	\$375,000
SITE VALUE:	\$205,000
AMOUNT PAYABLE:	\$1,038.44



Notes to Certificates Under Section 105 of the *Land Tax Act 2005*

Certificate No: 40313673

1. Under Section 96 of the *Land Tax Act 2005* (the Act), unpaid land tax (including special land tax and vacant residential land tax) is a first charge on the land to which it relates and should the vendor default, payment will be obtained from the purchaser. The purchaser should take into account the possibility that the vendor may default where land tax has been assessed but not paid.
2. A purchaser who has obtained a Certificate is only liable to a charge on the land to the amount of unpaid land tax as certified by a Certificate. A purchaser must obtain the Certificate from the Commissioner. They cannot rely on the Certificate obtained by the vendor.
3. If land tax (including special land tax and vacant residential land tax) is due but not paid on a property, the Land Tax Clearance Certificate will certify the amount of land tax due and payable on that land. This amount will be binding on the Commissioner of State Revenue (the Commissioner) for purposes of section 96 of the Act whether or not it is paid to the State Revenue Office (SRO) on, or shortly after, settlement.
4. The amount of land tax on this certificate relates to the amount of land tax (including special land tax and vacant residential land tax) due and payable as at the date of the application only and not to any future liability or the tax status of the land.
5. A 'Nil' Land Tax Clearance certificate does not mean that the land on the certificate is exempt from land tax or vacant residential land tax.
6. If land tax (including special land tax or vacant residential land tax) will be payable on a property but payment is not due at the time the application is processed, the certificate will certify the amount that should be retained by the purchaser at settlement and remitted to the SRO. The Commissioner will consider himself bound by this amount against the purchaser, only if the amount is remitted to the SRO.
7. If the amount in 4. (above) is understated, the Commissioner has the right to seek recovery of the correct amount, or the balance, as the case may be, from the:
 - a. vendor, or
 - b. purchaser, if the vendor defaults and the certified amount has not been remitted to the SRO.
8. If an amount is certified in respect of a proposed sale which is not completed, the Commissioner will not be bound by the same amount in respect of a later sale of the subject land - another certificate must be applied for in respect of that transaction.
9. If an amount certified is excessively high (for example, because an exemption or concession has not been deducted in calculating the amount) the Commissioner will issue an amended certificate, without an additional fee being charged on receipt of sufficient evidence to that effect from the vendor.
10. If no land tax (including special land tax or vacant residential land tax) is stated as being payable in respect of the property, the Commissioner will consider himself bound by that certification, in respect of the purchaser, if the land is subsequently found to be taxable and the vendor defaults.
11. If the vendor refuses to be bound by an amount stated by the Commissioner and does not agree to the amount being withheld and remitted at settlement, the purchaser cannot rely on such refusal as a defence to an action by the Commissioner to recover the outstanding amount from the purchaser under Sections 96 or 98 of the Act.
12. The information on a certificate cannot preclude the Commissioner from taking action against a vendor to recover outstanding land tax (including special land tax and vacant residential land tax).
13. You can request a free update of a Land Tax Clearance Certificate via our website if:
 - there is no change to the parties involved in the transaction, and
 - the request is within 90 days of the original certificate being issued.

For Information Only

LAND TAX CALCULATION BASED ON SINGLE OWNERSHIP

Land Tax = \$0.00

Taxable Value = \$205,000

Calculated as \$0 plus (\$205,000 - \$0) multiplied by 0.000 cents.

Land Tax Clearance Certificate - Payment Options

BPAY


Billers Code: 5249
Ref: 40313673

Telephone & Internet Banking - BPAY®
Contact your bank or financial institution to make this payment from your cheque, savings, debit or transaction account.

www.bpay.com.au

CARD


Ref: 40313673

Visa or Mastercard.
Pay via our website or phone 13 21 61.
A card payment fee applies.

sro.vic.gov.au/paylandtax



4 November 2020

Lewis O'Brien
C/- Landata
GPO Box 527
Melbourne Vic 3001

Ask for: Paula Baldacchino
Our Ref: PI2001783
Your Ref: 42190017-015-8

Dear Sir/Madam,

**Property Information – Building Regulations 2018
1/39 Powlett St, Altona Meadows Vic 3028**

In reply to your recent enquiry, I wish to advise that a search of our building records for the preceding ten (10) years reveals the following:

1. BS-U18120/20150183/0 was issued 27 Apr 2015 by Jamie Skrepetis JNat Building Permits for Construction of a Dwelling & Garage at the rear of existing dwelling
A Final Inspection was carried out 18 Nov 2015 and approved.
Occupancy Permit No. 20150183/0 was issued 22 Dec 2015
2. At present, our records reveal no outstanding building related orders pertaining to the Building Act 1993, over the above property.

Note: This disclosure may not include freestanding buildings constructed after 1 August 1997 and before 14 June 2005 where the cost of labour and materials did not exceed \$5,000 in value.

Note: All owners of properties that have swimming pools are required to have pool fencing erected in accordance with AS1926 or regulation 137 of the Building Regulations 2018. Pool and spa owners who fail to comply with the legislative requirements will have committed an offence and may be liable to a maximum penalty of \$7920.

Yours sincerely

Arthur Vatzakis
Manager Planning, Building and Health Services

Due diligence checklist

What you need to know before buying a residential property

Before you buy a home, you should be aware of a range of issues that may affect that property and impose restrictions or obligations on you, if you buy it. This checklist aims to help you identify whether any of these issues will affect you. The questions are a starting point only and you may need to seek professional advice to answer some of them. You can find links to organisations and web pages that can help you learn more, by visiting the **Due diligence checklist page on the Consumer Affairs Victoria website** (consumer.vic.gov.au/duediligencechecklist).

Urban living

Moving to the inner city?

High density areas are attractive for their entertainment and service areas, but these activities create increased traffic as well as noise and odours from businesses and people. Familiarising yourself with the character of the area will give you a balanced understanding of what to expect.

Is the property subject to an owners corporation?

If the property is part of a subdivision with common property such as driveways or grounds, it may be subject to an owners corporation. You may be required to pay fees and follow rules that restrict what you can do on your property, such as a ban on pet ownership.

Growth areas

Are you moving to a growth area?

You should investigate whether you will be required to pay a growth areas infrastructure contribution.

Flood and fire risk

Does this property experience flooding or bushfire?

Properties are sometimes subject to the risk of fire and flooding due to their location. You should properly investigate these risks and consider their implications for land management, buildings and insurance premiums.

Rural properties

Moving to the country?

If you are looking at property in a rural zone, consider:

Is the surrounding land use compatible with your lifestyle expectations? Farming can create noise or odour that may be at odds with your expectations of a rural lifestyle.

Are you considering removing native vegetation? There are regulations which affect your ability to remove native vegetation on private property.

Do you understand your obligations to manage weeds and pest animals?

Can you build new dwellings?

Does the property adjoin crown land, have a water frontage, contain a disused government road, or are there any crown licences associated with the land?

Is there any earth resource activity such as mining in the area?

You may wish to find out more about exploration, mining and quarrying activity on or near the property and consider the issue of petroleum, geothermal and greenhouse gas sequestration permits, leases and licences, extractive industry authorisations and mineral licences.

Soil and groundwater contamination

Has previous land use affected the soil or groundwater?

You should consider whether past activities, including the use of adjacent land, may have caused contamination at the site and whether this may prevent you from doing certain things to or on the land in the future.

(04/10/2016)

Land boundaries

Do you know the exact boundary of the property?

You should compare the measurements shown on the title document with actual fences and buildings on the property, to make sure the boundaries match. If you have concerns about this, you can speak to your lawyer or conveyancer, or commission a site survey to establish property boundaries.

Planning controls

Can you change how the property is used, or the buildings on it?

All land is subject to a planning scheme, run by the local council. How the property is zoned and any overlays that may apply, will determine how the land can be used. This may restrict such things as whether you can build on vacant land or how you can alter or develop the land and its buildings over time.

The local council can give you advice about the planning scheme, as well as details of any other restrictions that may apply, such as design guidelines or bushfire safety design. There may also be restrictions – known as encumbrances – on the property's title, which prevent you from developing the property. You can find out about encumbrances by looking at the section 32 statement.

Are there any proposed or granted planning permits?

The local council can advise you if there are any proposed or issued planning permits for any properties close by. Significant developments in your area may change the local 'character' (predominant style of the area) and may increase noise or traffic near the property.

Safety

Is the building safe to live in?

Building laws are in place to ensure building safety. Professional building inspections can help you assess the property for electrical safety, possible illegal building work, adequate pool or spa fencing and the presence of asbestos, termites, or other potential hazards.

Building permits

Have any buildings or retaining walls on the property been altered, or do you plan to alter them?

There are laws and regulations about how buildings and retaining walls are constructed, which you may wish to investigate to ensure any completed or proposed building work is approved. The local council may be able to give you information about any building permits issued for recent building works done to the property, and what you must do to plan new work. You can also commission a private building surveyor's assessment.

Are any recent building or renovation works covered by insurance?

Ask the vendor if there is any owner-builder insurance or builder's warranty to cover defects in the work done to the property.

Utilities and essential services

Does the property have working connections for water, sewerage, electricity, gas, telephone and internet?

Unconnected services may not be available, or may incur a fee to connect. You may also need to choose from a range of suppliers for these services. This may be particularly important in rural areas where some services are not available.

Buyers' rights

Do you know your rights when buying a property?

The contract of sale and section 32 statement contain important information about the property, so you should request to see these and read them thoroughly. Many people engage a lawyer or conveyancer to help them understand the contracts and ensure the sale goes through correctly. If you intend to hire a professional, you should consider speaking to them before you commit to the sale. There are also important rules about the way private sales and auctions are conducted. These may include a cooling-off period and specific rights associated with 'off the plan' sales. The important thing to remember is that, as the buyer, you have rights.

(04/10/2016)